

25STCV12586 25STCV12586

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C400%2C07%2F16%2F2026

Source SHA-256: 36a53d089f191c5b827e897c9e50424161675a7e7163f1e5572f79129e4d07ce

Case Number: 25STCV12586 Hearing Date: July 16, 2026 Dept: 400

MOTIONS

TO COMPEL DISCOVERY

The Court tenders the following tentative decision in the matter Araceli Badajoz v. 111 W 7 Owner, LLC, et al., Los Angeles County Superior Court case number 25STCV12586, set for hearing on July 16, 2026. Araceli Badajoz (Plaintiff) moves separately for orders compelling Fifteen Group Land & Development, LLC, FG DTLA SPC LLC, and 111 W 7 Owner, LLC (collectively, Defendants) to provide responses to Plaintiff's form interrogatories, set one (FROGs), special interrogatories, set one (SPROGs), requests for production of documents, set one (RFPs), and to deem Plaintiff's requests for admissions, set one (RFAs), admitted. Plaintiff also requests a total \$31,950 in sanctions. Plaintiff's motions are granted. The Court does not impose sanctions.

If a party

to whom interrogatories are directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2030.290.) If a party to whom an inspection demand is directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2031.300.) And if a party to whom RFAs are directed fails to serve a timely response, the requesting party "may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary

sanction under Chapter 7.” (Id., § 2033.280, subd. (b).) A court must make such an order “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Id., § 2033.280, subd. (c).)

Here, Plaintiff filed her original complaint on April 30, 2025. She served all relevant written discovery requests via email on June 4, 2025. (Bonyadi Decl. ¶ 3.) Responses were due on or before August 18, 2025. (Id. ¶ 4.) To date, Defendants have failed to provide any responses. (Id. ¶ 6.) Because of Defendants’ failure to respond, Plaintiff’s motions to compel discovery and deem RFAs admitted pursuant to Code of Civil Procedure sections 2030.290, 2031.300, and 2033.280 are proper.

Defendants

argue that they did not receive proper notice of the present motions, the first of which was scheduled for July 1, 2026. Two days later, all the present motions were consolidated to July 16. All motions and notices of motion were served on June 8, 2026. All moving papers must be served and filed “at least 16 court days before the hearing.” (Code Civ. Proc., § 1005, subd. (b).) This notice period is extended by 2 calendar days where service is by email. (Ibid.) Based on Plaintiff’s service date of June 8, the earliest possible hearing date providing for proper notice would have been on July 6. All but one of Plaintiff’s motions were scheduled for that day or later. Accordingly, all of Plaintiff’s motions are granted, with the exception of Plaintiff’s motion to compel responses to FROGs and SPROGs from 111 W 7 Owner, LLC, which was initially set for July 1 and thus did not provide sufficient notice.

Separately,

Defendants argue that excusable neglect explains their failure to provide discovery but cites no authority for the proposition that a motion to compel discovery may be denied for this reason. To be sure, such circumstances may offer a reason not to impose sanctions, as discussed below. Additionally, under sections 2030.290 and 2031.300, mistake, inadvertence, and excusable neglect may serve as a basis for the Court to relieve a party from its waiver of all objections if the affected party brings a separate noticed motion. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) But the Court must still grant a motion to compel response even if such circumstances existed. (Id., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

The Court need not impose sanctions with respect to a motion to compel if the Court finds that circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Here, Defendants explain that responses were not provided because nearly identical discovery was being prepared in a companion case and counsel became confused. (Willenberg Decl. ¶ 4.) Counsel only learned of the pending motions to compel and related discovery on July 7. (Id. ¶ 6.) This is because the motions were sent to another individual not involved in this matter. (Id. ¶ 7.) Based on these circumstances, the Court finds that the imposition of monetary sanctions would be unjust.

Conclusion:

The Court grants Plaintiff's motions with the exception of her motion to compel responses to FROGs and SPROGs from 111 W 7 Owner, LLC, based on insufficient notice. The Court does not award sanctions. Responses to be served within 30 days.